

HOUSE BILL 1281

By Hill

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 2; Title 49, Chapter 5 and Title 49,
Chapter 6, relative to released time courses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-2-130, is amended by adding the following as a new subsection:

(i)

(1) A person holding a position with an independent entity as a released time course instructor or any other position requiring proximity to students attending the released time course shall:

(A) Submit to a criminal history records check to be conducted by the Tennessee bureau of investigation (TBI); and

(B) Agree to permit the TBI to release the results of the criminal history records check to the independent entity conducting the released time course.

(2) An independent entity conducting a released time course shall release all criminal history records checks conducted pursuant to subdivision (i)(1) to the LEA.

(3) An LEA that excuses a student from school to attend a released time course pursuant to this section shall:

(A) Require an independent entity that teaches a released time course that a student of the LEA attends to agree that no person holding a position with the independent entity is permitted to be in proximity to

children attending the released time course, unless the person submits to the requirements of subdivision (i)(1); and

(B) Review the results of a criminal history records check that are released to the LEA by the independent entity pursuant to subdivision (i)(2) and notify the parents or guardians of students who attend a released time course of whether the criminal history records check is satisfactory.

(4) As used in this subsection (i), "satisfactory" means that the results of a criminal history records check reviewed by an LEA pursuant to subdivision (i)(3)(B) indicate that the subject of the criminal history records check has not been convicted of an offense listed in § 49-5-417(a).

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.